



File No.: EXP202204232

SANCTIONING PROCEDURE RESOLUTION

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:
BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on March 15, 2022. The complaint is directed against MASLUZ ENERGY POWER, S.L. with NIF B67572636 (hereinafter, the respondent or MAS LUZ). The reasons for the complaint are as follows:

The complainant states that at the end of June 2021, she received a phone call from her energy supplier offering her a better electricity rate.

It results that a change of supplier occurred without her authorization, and she did not provide any personal or banking data.

In light of this, after attempting to claim against MAS LUZ on August 9 and August 31, 2021. In the latter email, she requests the deletion of her personal data, as well as a copy of the recording of the call received in June 2021.

Subsequently, on October 11, 2021, she receives an email from the respondent informing her that they are processing the complaint.

Relevant documentation provided by the complainant:

- Charge receipt in the complainant's bank account from MAS LUZ.
- Charge receipt in the complainant's bank account from Suministrador Ibérico de Energía.
- Emails exchanged with clientes@masluzenergia.com exercising her right to deletion of personal data.
- Emails exchanged with prelegal@gestiondecobros.net, a debt collection management company, indicating among other things that she was with MAS LUZ for a month without her consent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGGDD), the complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on April 8, 2022, as recorded in the acknowledgment of receipt in the file.

On May 9, 2022, a response was received by this Agency indicating:

“It is necessary to indicate that the procedures for formalizing the electricity supply contract with MAS LUZ require, as is logical, the verification and authentication of the client's will to proceed with the signing of the contract. This implies that when a telemarketing service provider formalizes a supply contract on behalf of MAS LUZ, they must provide the recording of the sales process. In this way, MAS LUZ can verify that the contracting has been carried out properly. After reviewing the recordings of the telephone call, we have been able to verify that the salesperson at no time stated that they worked for the third company in question, but rather carried out the contracting process indicating to the Complainant that the contracting would be carried out with Mas Luz Energía.

Regarding the origin of the personal data referred to by the Complainant, the following considerations should be made about the contracting process when it is carried out by a telemarketing service provider.

The telemarketing service provider transfers to MAS LUZ the personal data of interested parties to whom the products and services of MAS LUZ will be offered.

Subsequently, the telemarketing service provider acts as a data processor for MAS LUZ to carry out the activities of offering its products and services and contracting the corresponding products and services.

However, the telemarketing service provider can only carry out commercial actions on those interested parties who have provided their consent for the transfer of their personal data to MAS LUZ for that purpose.

Taking the above into account, MAS LUZ cannot determine where the telemarketing service provider obtained the complainant's personal data, since it obtained them as an independent data controller of MAS LUZ.

At the time of signing the service provision contract, the telemarketing service provider undertook to transfer only the personal data of those interested parties who had given their consent for that purpose.

Additionally, the service provider committed to duly inform the interested parties in accordance with data protection regulations about the transfer of their data to MAS LUZ.

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In the event of exercising the rights regulated in Articles 15 to 22 of the GDPR, accreditation of the response provided to the complainant. Attached to the complaint, the Complainant requests the deletion of their personal data. The communication sent to the complainant is attached as Annex I to this response.

MAS LUZ has a two-step contract signing process: A first step in which the service conditions are communicated by phone, and if the client accepts these conditions via the same means, the contract is sent for signature via SMS.

In the case of the present complaint, the complainant accepted the service conditions both by phone and by SMS, therefore the contract was formalized correctly.

MAS LUZ is primarily interested in ensuring that the contracting of its services is always in accordance with current legislation. Therefore, although it has been determined after investigations that its actions have been in accordance with personal data protection regulations, due to the detection of incidents of different nature in the contracting procedure of its services, MAS LUZ has adopted the measure of completely halting the contracting procedure of its services since March 4, 2022, until these issues are resolved.

THIRD: In accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), when a complaint is presented to the Spanish Data Protection Agency (hereinafter, AEPD), it must evaluate its admissibility for processing, notifying the complainant of the decision on admission or inadmissibility for processing within three months from the date the complaint was received by this Agency. If, after this period, such notification does not occur, it will be understood that the processing of the complaint continues in accordance with the provisions of Title VIII of the Law.

This provision also applies to the procedures that the AEPD must process in exercising the powers conferred on it by other laws.

In this case, taking into account the above and that the complaint was presented to this Agency on March 15, 2022, it is communicated that your complaint has been admitted for processing on June 15 of the same year, having elapsed three months since it was received by the AEPD.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, having knowledge of the following points:

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INVESTIGATED ENTITIES

During the present actions, the following entities have been investigated:

ALPA 57 PRODUCCIONES, S.L. with NIF B13512892 located at C/ GUARDIA CIVIL S/N - 13240 LA SOLANA (CIUDAD REAL) and

MASLUZ ENERGY POWER, S.L. with NIF B67572636 located at RAMBLA DEL GARRAF, 76 - 08812 BARCELONA (BARCELONA)

RESULT OF THE INVESTIGATIVE ACTIONS

From the investigation, the following is concluded:

From a request sent to MASLUZ, the following information is received:

- MASLUZ provides a transcript of the conversation with the complainant, where they give their authorization for the change of the commercial service provider.
- MASLUZ is asked to provide proof of the complainant's consent to the use of their personal data, to which they respond that the telemarketing company handling the contracting service (Alpa 57 Producciones S.L.) is responsible for the data, that they do not know where it is obtained from, and therefore they are not aware of the consent provided by the complainant at the time of data collection. They refer to the attached "Annex I" as the contract between MAS LUZ and Alpa 57, but this document is not attached in the response.
- In the same response, the respondent attaches a reply sent by Aviva Voice Systems & Services, S.L. (provider of MASLUZ's electronic communications service) certifying that MAS LUZ (Insignia Gas, S.L.) sent electronic communications to the complainant for the contracting process of the indicated services.

In one of the communications (message sent on 17-06-2021 at 11:18 to mobile ***PHONE.1 and which, according to their records, the text of the message was delivered at 2021-06-17 11:14 CET), it was requested to click on a web link to read the pre-contractual information and confirm the contract; they claim that at 2021-06-17 11:14 CET this page was accessed and confirmation was received from the respondent to the previous message on 17-06-2021 at 11:18.

- A request was sent asking Orange and Telefónica (operators of the complainant's and respondent's phones) to confirm the receipt and sending of SMS on the indicated dates and times. Neither operator provides this information, claiming that after more than a year has passed, they do not have such information as Law 25/2007 sets a retention period of 12 months.
- A request was sent to the telemarketing service provider (Alpa 57 Producciones S.L.) asking them to prove how the data was obtained.

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personal information of the claimant (name, ID number, bank account number), accreditation of the claimant's consent to the use of their personal data, and a copy of the audio file of the recording made with the claimant, to which it responds:

"That we cannot provide the requested information, because the hiring of A.A.A. in June 2021 was carried out by the company 'GEST INNOVA MIMT SOCIEDAD LIMITADA', with CIF B16984254, and located at C/ Carmen nº27, 5th floor C, 02005 Albacete, as our subcontractor, who made the client and called them, therefore the information related to that company should be requested."

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Gest Innova Sociedad Limitada, in response to the information request, attaches the notarial document constituting the company dated November 14, 2021, which is after the date of the events.

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A new information request is sent to Alpa 57 Producciones S.L. to confirm the response to their first

request and also to request the contract between Alpa 57 Producciones S.L. and Gest Innova Sociedad Limitada. These requests have acknowledgment of receipt, but no response was received. A reiteration of these was resent, and no response has been received.

CONCLUSION:

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In the provided transcription, the authorization for the hiring of supply services by MASLUZ appears; however, this authorization is not verified as it could not be confirmed in the recording itself since it has not been provided following the request.

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The transcription shows the claimant's consent for Alpa 57 to transfer their data to MASLUZ; this has also not been verified for the same reasons stated above.

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According to Alpa 57 Producciones, S.L., the hiring on the claimed date (June 2021) was carried out by Gest Innova Sociedad Limitada, which is inconsistent with the incorporation date of the latter, which dates from November 2021, according to the notarial document provided by them. Alpa 57 Producciones, S.L. did not respond to the request asking for confirmation of this information nor did it provide the contract between these two companies, understanding that it has refused to cooperate.

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MASLUZ did not attach a contract with ALPA 57 PRODUCCIONES, S.L.

FIFTH: On March 1, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 13 of the GDPR and Article 6.1 of the GDPR, classified in Article 83.5 of the GDPR.

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SIXTH: Once the aforementioned initiation agreement was notified in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the respondent submitted a written statement of allegations in which, in summary, it stated that: "According to what this party explained, the process of contracting the services offered by Suministrador Ibérico de Energía, S.L. (hereinafter, SIE) is carried out through a double acceptance; the first acceptance occurs during the phone call and the second through the sending of an SMS to finalize the contract. As already reported in the Initial Information Requirement, SIE has a telemarketing provider, ALPA 57 PRODUCCIONES, S.L., which collects the data of interested parties as the Data Controller, and once they express their desire to contract with SIE and consent to the communication of data necessary to carry out the contracting, ALPA 57 PRODUCCIONES, S.L. at this moment acts as the Data Processor of SIE and carries out the contracting following the instructions provided. As indicated in this allegation, it has been demonstrated that the contracting was carried out appropriately, so the data processing carried out by SIE is based on the existing contractual relationship between the respondent and SIE in accordance with Article 6.1 b) of the GDPR. According to what has been indicated, the mandatory information on data protection in accordance with Article 13 of the GDPR is detailed in clause 17 of the supply contract formalized between the complainant and SIE, which contains all the fields detailed in the referenced Article 13 of the GDPR. That the proceedings be archived by the AEPD."

SEVENTH: On March 29, 2023, the instructor of the procedure agreed to carry out the following evidence: <<1. The complaint filed by A.A.A. and its documentation, the documents obtained and generated during the admission phase of the complaint, and the preliminary investigation report that are part of the procedure AI/00294/2022 are considered reproduced for evidentiary purposes. 2. Likewise, the allegations to the initiation agreement of the referenced sanctioning procedure, presented by MASLUZ ENERGY POWER, S.L., and the documentation accompanying them are

considered reproduced for evidentiary purposes.>>

EIGHTH: On May 9, 2023, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection sanction MASLUZ ENERGY POWER, S.L., with NIF B67572636, for an infringement of Article 13 of the GDPR and Article 6.1 of the GDPR, classified, respectively, in Articles 83.5 a) and 83.5 b) of the GDPR, with a fine of:

- For the breach of the provisions of Article 6.1 of the GDPR: €70,000 (seventy thousand euros).
- For the breach of the provisions of Article 13 of the GDPR: €20,000 (twenty thousand euros).

Thus, the total amount of the fines included in this resolution proposal would be €90,000 (NINETY THOUSAND EUROS).

Once the resolution proposal was notified, the respondent did not submit any allegations against it.

PROVEN FACTS

1st. The complainant filed a complaint with this Agency on March 15, 2022, stating that a change of energy supplier was carried out at the end of June 2021 without their consent.

2nd. The invoices provided by the complainant show the change of the marketing company. The name of the respondent appears on the invoice issued on August 9, 2021, for the amount of (...) euros.

3rd. The personal data of the complainant were incorporated into the company's information systems, without having demonstrated that they had legitimately contracted, had their consent for the collection and subsequent processing of their personal data, or that there was any other cause that made the processing carried out lawful.

4th. The complaints made by the complainant to MAS LUZ on August 9, 2021, and August 31, 2021, are recorded (in this email, they request the deletion of their personal data, as well as a copy of the recording of the call received in June 2021), receiving an email from the respondent on October 11, 2021, informing them that they are processing the complaint (without response).

5th. MAS LUZ has not provided evidence of the contracting that it claims the complainant made, specifically the proof of electronic contracting via SMS confirmation, as well as the voice recording of the confirmation of the contracting.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations

In response to the allegations presented by the entity being complained about, the following should be noted:

It has been established that the entity being complained about issued the invoice for the month of August 2021, in the name of the complainant for an amount of (...) €, as stated in the invoice from Emissor MAS LUZ ENERG.A.

On the other hand, this Agency sent a request to the telemarketing service provider (Alpa 57 Producciones S.L.) asking them to provide evidence of how the personal data of the complainant (name, ID number, bank account number) was obtained, and to provide proof of the complainant's

consent for the use of their personal data and a copy of the audio recording of the conversation held with them, to which they responded:

"That we cannot provide the requested information, because the contracting of the A.A.A. in June 2021 was carried out by the company 'GEST INNOVA MIMT SOCIEDAD LIMITADA', with CIF B16984254, and address at C/Carmen nº27, 5th floor C, 02005 Albacete, as our subcontractor, who made the client and called them, and the information related to that company should be requested."

Gest Innova Sociedad Limitada, in response to the information request from this Agency, attached the notarial document constituting the company dated November 14, 2021, which is after the date of the events.

Furthermore, MASLUZ in its response to this Agency on May 9, 2022, states: "It is necessary to indicate that the procedures for formalizing the electricity supply contract at MAS LUZ require, as is logical, the verification and authentication of the client's expression of will to proceed with the signing of the contract. This implies that when a telemarketing service provider formalizes a supply contract on behalf of MAS LUZ, they must provide the recording of the sales process. In this way, MAS LUZ can verify that the contracting has been carried out appropriately. After reviewing the recordings of the telephone call, we have been able to verify that the salesperson at no time said that they worked for the third company in question, but rather carried out the contracting process indicating to the Complainant that the contracting would be carried out with Mas Luz Energía."

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Thus, MASLUZ does not provide this Agency with the recording of the sales process regarding the complainant. Therefore, the entity being complained about does not demonstrate a legitimate basis for the processing of the complainant's data.

The entity being complained about, in its capacity as data controller, in accordance with Article 13 of the GDPR, is obliged to provide the information indicated therein prior to the processing of the complainant's data and to inform them that the data controller is MAS LUZ.

In summary, MASLUZ is the data controller and must give its processors instructions regarding the information they must provide to clients, and in this case, it does not appear that this has been done.

III

Obligation not fulfilled

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data.

"1. Processing shall be lawful only if it meets at least one of the following conditions:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person.
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

On this issue of the lawfulness of processing, Recital 40 of the aforementioned GDPR also emphasizes that "For processing to be lawful, personal data must be processed with the consent of the

data subject or based on other legitimate grounds."

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any other legitimate basis established in accordance with the law, whether in this Regulation or under another Union or Member State law to which this Regulation refers, including the need to comply with the legal obligation applicable to the data controller or the need to execute a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract."

In relation to the above, there is evidence that the processing of data of the claimant subject to this complaint has been carried out without a legitimizing cause as set out in Article 6 of the GDPR.

The GDPR applies to personal data, which is defined as "personal data": any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is considered to be any person whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person.

On the other hand, Article 5 of the GDPR regarding the principles governing the processing of personal data mentions among them the principle of transparency. Paragraph 1 of the provision states: "Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ("lawfulness, fairness, and transparency")"

A manifestation of the principle of transparency is the obligation incumbent upon data controllers to inform, in the terms of Article 13 of the GDPR, the data subject when personal data is obtained directly from the data subject:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller, at the time of obtaining such data, shall provide the data subject with all the information indicated below:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision.

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adaptation of the Commission, or, in the case of the transfers indicated in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to adequate or appropriate safeguards and the means to obtain a copy of these or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the

data subject, and their rectification or erasure, or the restriction of their processing, or to object to the processing, as well as the right to data portability;

c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of failing to provide such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to that further processing, information about that other purpose and any other relevant information pursuant to paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

In this regard, Recital 60 of the GDPR states that "The principles of fair and transparent processing require that the data subject be informed of the existence of the processing operation and its purposes. The data controller must provide the data subject with any supplementary information necessary to ensure fair and transparent processing, taking into account the specific circumstances and context in which the personal data are processed. The data subject must also be informed of the existence of profiling and the consequences of such profiling. If the personal data are obtained from the data subjects, they must also be informed whether they are obliged to provide the data and of the consequences of failing to do so."

Article 13 of the GDPR provides that when personal data are collected from a data subject - which occurs in the present case - the data controller is obliged, at that precise moment, that is, when it obtains them, to inform the data subject. This information covers various issues detailed in Article 13 of the GDPR.

IV

Classification and Qualification of the Violations

In accordance with the evidence available, it is considered that the facts presented violate the provisions of Articles 6.1 and 13 of the GDPR, which constitutes the commission of two violations classified in Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;

b) the rights of the data subjects under Articles 12 to 22; [...]."

The LOPDGD, for the purposes of the prescription of violations, classifies in its Article 72.1 as very serious violations, with a prescription period of three years in this case, "b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law."

IV

Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"Each supervisory authority shall ensure that the imposition of administrative fines under this article for the violations of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive."

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, due regard shall be given to:

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- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damages suffered;
- b) the intent or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringements committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Regarding item k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

In accordance with the transcribed provisions, for the purpose of determining the amount of the fine to be imposed on the entity claimed as responsible for an infringement of the provisions of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR, the following factors are deemed concurrent in this case:

As aggravating factors:

- The evident connection between the business activity of the claimed entity and the processing of personal data of clients or third parties (Article 83.2.k of the GDPR in relation to Article 76.2.b of the LOPDGDD)

It is appropriate to graduate the sanction to be imposed on the claimed entity and set it at the amount

of €70,000 (seventy thousand euros) for the infringement of Article 6 of the GDPR classified in Article 83.5.a) of the GDPR and 72.1.b) of the LOPDGDD.

In relation to the infringement of Article 13 of the GDPR, for the purpose of determining the amount of the sanction to be imposed in this case, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established by Article 83.2 of the GDPR:

- The facts subject to the claim are attributable to a lack of diligence on the part of the claimed entity (item b), for failing to inform the claiming party.

The balance of the circumstances contemplated in Article 83.2 of the GDPR, regarding the infringement committed by violating the provisions of Article 13 of the GDPR, allows for an initial sanction of €20,000 (twenty thousand euros).

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on MASLUZ ENERGY POWER, S.L. with NIF B67572636, for an infringement of Article 13 of the GDPR and Article 6.1 of the GDPR, classified, respectively, in Articles 83.5.a) and 83.5.b) of the GDPR, a fine of:

- For the non-compliance with the provisions of Article 6.1 of the GDPR: €70,000 (seventy thousand euros).

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- For the breach of the provisions of Article 13 of the GDPR: €20,000 (twenty thousand euros).

Thus, the total amount of the fines included in this resolution would be €90,000 (ninety thousand euros).

SECOND: NOTIFY this resolution to MASLUZ ENERGY POWER, S.L. with NIF B67572636.

THIRD: Warn the sanctioned party that they must pay the imposed fine once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months

from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí
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